

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARIA VALDEZ, individually, and as
Mother and Natural Guardian of A.S., an infant

Plaintiffs,

COMPLAINT

-against-

PLAINTIFF DEMANDS
TRIAL BY JURY

THE CITY OF NEW YORK, POLICE OFFICER
ANDREW KAMNA, Shield #24865
POLICE OFFICERS JOHN/JANE DOE(S) #S 1-10,

Index No:

Defendants.
-----X

Plaintiffs MARIA VALDEZ and A.S., for their complaint, by their attorney DAVID A.
ZELMAN, ESQ., and upon information and belief respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiffs MARIA VALDEZ (hereinafter "VALDEZ") and A.S., an infant, seek damages to redress the deprivation, under color of state law, of rights secured to them under the Fourth, Fifth and Fourteenth Amendments of the United States Constitution. It is alleged that Defendants falsely arrested Plaintiffs with excessive force. As a result of the excessive force used by Defendants, Plaintiffs suffered and mental injuries.

II. PARTIES

2. Plaintiffs VALDEZ and A.S. at all times relevant hereto resided in Brooklyn, NY.
3. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New

York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.

4. Defendant POLICE OFFICER ANDREW KAMNA, Sheild #24865 (hereinafter "KAMNA") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of their employment. Defendant KAMNA is sued in his official and individual capacity.
5. Defendants POLICE OFFICERS JOHN/JANE DOE(S) (hereinafter "DOE(S)") were NYPD police officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of Defendant CITY and within the scope of their employment. DOE(S) are sued in their official and individual capacity.
6. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

III. FACTS

7. On or about November 8, 2016, at approximately 6:30 a.m., Plaintiffs VALDEZ and A.S. were inside their apartment at 791 Marcy Avenue, Apt 1A, Brooklyn, NY.
8. At the aforementioned time and place, Defendant officers, including but not limited to KAMNA, broke open the door of the apartment.
9. Defendant officers, including but not limited to KAMNA, entered Plaintiffs' apartment with guns drawn and ordered Plaintiffs to remain still.

10. Thereafter, Defendant officers, including but not limited to KAMNA, excessively searched the apartment.
11. Defendant officers, including but not limited to KAMNA, detained Plaintiffs for approximately two hours while they searched the apartment.
12. Plaintiff VALDEZ was handed a document entitled “search warrant” bearing Plaintiffs’ address and the name of a person who had not lived at Plaintiffs’ address for approximately two years before Plaintiffs’ began living at that address.
13. Defendant officers, including but not limited to KAMNA, departed after excessively searching the apartment. Plaintiffs were not detained following the search.
14. The officers conducted the search in an unreasonable manner after they knew or should have known that the person listed on the warrant had not resided in the apartment for years prior to the search.
15. That heretofore and on the 26^h day of January, 2017, Plaintiffs’ Notices of Claim and Intention to sue were duly served upon and filed with the CITY; said Notices were filed within ninety (90) days after the cause of action herein accrued and set forth Plaintiffs’ names, the nature of the claim, the time and place of the incident, the manner in which the claim arose and the items of damage and injuries sustained.
16. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

IV. FIRST CAUSE OF ACTION
Pursuant to §1983 (FALSE ARREST)

17. Paragraphs 1 through 16 of this complaint are hereby realleged and incorporated by reference herein.

18. That Defendants had neither valid evidence for the detention of Plaintiffs nor legal cause or excuse to seize and detain them.
19. That in detaining VALDEZ and A.S. without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the NYPD under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely detained persons without legal cause or excuse. VALDEZ and A.S. were but two of those persons. Plaintiffs specifically allege causes of action pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658.
20. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
21. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
22. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of VALDEZ's and A.S.'s rights alleged herein.
23. By reason of Defendants' acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiffs' rights, subjected Plaintiffs to an unlawful detention, in violation of the Fourth and

Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

24. By reason of the foregoing, VALDEZ and A.S. suffered mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

V. SECOND CAUSE OF ACTION
Pursuant to §1983 (FAILURE TO INTERVENE)

25. Paragraphs 1 through 24 are hereby realleged and incorporated by reference herein.
26. That Defendants failed to intervene when Defendants knew or should have known that Plaintiff's constitutional rights were being violated.
27. That Defendants had a realistic opportunity to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence.
28. That a reasonable person in the Defendants' position would know that Plaintiff's constitutional rights were being violated.
29. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they failed to intervene to protect him from Defendants' violation of Plaintiff's civil rights pursuant to the Fourteenth Amendment of the United States Constitution.
30. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from constitutional violations by police officers. Thus, as a result of the above described policies and customs, Plaintiff was not protected from Defendants' unconstitutional actions. Plaintiff specifically alleges causes of action pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658.

31. That upon information and belief it was the policy and/or custom of defendant CITY to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.
32. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
33. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of detainees and were the cause of the violations of Plaintiff's rights alleged herein.
34. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.
35. That by reason of the foregoing, Plaintiffs suffered and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

VI. THIRD CAUSE OF ACTION
Pursuant to § 1983 (EXCESSIVE DETENTION)

36. Paragraphs 1 through 35 are hereby realleged and incorporated by reference herein.
37. That Defendants had neither legal cause nor excuse to detain Plaintiffs for a prolonged period.
38. That Defendants detained Plaintiffs excessively in violation of Plaintiff's civil rights.
39. That Defendants detained Plaintiffs with ill will and/or negligently.

40. That Defendants should have expeditiously investigated this matter and released Plaintiffs.
41. By reason of Defendants' acts and omissions, Defendant, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiffs' rights, deprived Plaintiffs of their liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
42. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.
43. That upon information and belief, in 2016, Defendant CITY had a policy or routine practice of detaining and imprisoning individuals for excessive periods. Plaintiff specifically alleges causes of action pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658.
44. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
45. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

46. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant NYPD to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.
47. That Defendant, through its officers, agents and employees, unlawfully incarcerated Plaintiff for an excessive period of time prior to arraignment.
48. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

VII. FOURTH CAUSE OF ACTION

Pursuant to State Law and 42 USC Section 1983 (UNLAWFUL SEARCH/PROPERTY DAMAGE)

49. Paragraphs 1 through 48 are hereby realleged and incorporated by reference herein.
50. Defendants unlawfully entered Plaintiffs' residence without the requisite suspicion or a valid warrant.
51. In so doing, defendants violated Plaintiffs' constitutionally protected rights to be free from an unlawful search of their property.
52. In obtaining the warrant, Defendants failed to apprise the issuing magistrate of correct and up to date information as to the person wanted. Defendants misled the magistrate intentionally and/or negligently in that the person wanted had not resided in the subject apartment for several years. The issuing magistrate, had he/she known relevant and accurate information for the subject property, would never have issued a warrant for the subject property and therefore the damages herein resulted from the Defendants' actions and/or omissions.

53. By reason of the foregoing, plaintiffs' constitutionally protected rights to be free from an unlawful search and seizure of their property were infringed.

VIII. FIFTH CAUSE OF ACTION

Pursuant to 42 USC Section 1983 (DUE PROCESS VIOLATION / FOURTH AMENDMENT RIGHTS)

54. Paragraphs 1 through 53 are hereby realleged and incorporated by reference herein.
55. That Defendants entered Plaintiffs' apartment forcefully, without a valid warrant or legal basis to do so.
56. In obtaining the warrant, Defendants failed to apprise the issuing magistrate of correct and up to date information as to the person wanted. Defendants misled the magistrate intentionally and/or negligently in that the person wanted had not resided in the subject apartment for several years. The issuing magistrate, had he/she known relevant and accurate information for the subject property, would never have issued a warrant for the subject property and therefore the damages herein resulted from the Defendants' acts and/or omissions.
57. That said forced entry into Plaintiffs' apartment was made without exigent circumstances.
58. That said warrantless entry constituted a search and seizure of Plaintiffs' private property and violated Plaintiffs' rights.
59. By reason of Defendants' acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of Plaintiffs' rights, searched and seized Plaintiffs' personal property without providing due process under the law, in violation of the Fourth, Fifth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
60. By reason of the foregoing, Plaintiffs suffered mental injuries, economic injury,

deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

IX. SIXTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

61. Paragraphs 1 through 60 are hereby realleged and incorporated by reference herein.
62. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.
63. That at all times Defendants were acting within the scope of their employment.
64. That Defendant CITY was able to exercise control over Defendants' activities.
65. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, Plaintiffs suffered mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

INJURY AND DAMAGES

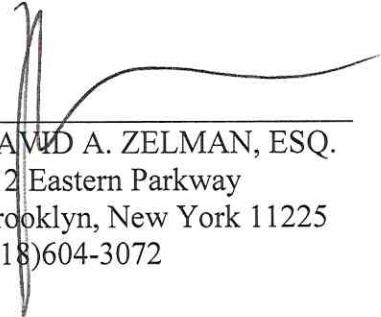
As a result of the acts and conduct complained of herein, Plaintiffs have suffered and will continue to suffer, emotional pain, suffering, permanent disability, inconvenience, injury to their reputations, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiffs have further experienced severe emotional distress and loss of love, services, consortium, affection, society and companionship.

WHEREFORE, Plaintiff respectfully request that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from November 8, 2016 and

4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC § 1988; and
5. Granting such other and further relief as to this Court deems proper.

DATED: Brooklyn, New York
April 27, 2017



DAVID A. ZELMAN, ESQ.
612 Eastern Parkway
Brooklyn, New York 11225
(718)604-3072

ATTORNEY VERIFICATION

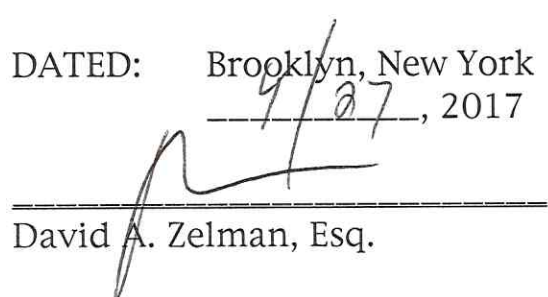
David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing Complaint and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff(s) is that the plaintiff(s) is presently in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation contained in the file.

DATED: Brooklyn, New York
4/27, 2017



David A. Zelman, Esq.